November 2026 General Municipal Election

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF CITY OF SUNNYVALE MEASURE H

CITY ATTORNEY'S IMPARTIAL ANALYSIS STARTS HERE→

This measure would amend Sunnyvale City Charter Section 1314 to give the City Council the authority to adopt an ordinance setting the City Manager's maximum authority to settle claims against the City.

The Council placed this measure on the ballot on recommendation of a Charter Review Committee of appointed Sunnyvale residents.

Currently, the City follows Government Code Section 935.4, which requires the City Council to approve all settlements of lawsuits and claims greater than $50,000. The California Legislature set the $50,000 limit in 1989 and has not adjusted it for inflation. Government Code Section 935.4 requires an amendment to the City Charter to change the $50,000 limit.

If a settlement is within the City Manager's authority, it means that the City Manager or their designee, such as the Risk Manager, can approve the settlement without involving the City Council. If a proposed settlement is over the City Manager's authority, staff will present the case to the City Council in a confidential closed session. The Council may approve or disapprove the settlement, or authorize staff to negotiate a settlement up to a certain amount.

This measure would authorize the City Council to set the City Manager's maximum settlement authority by ordinance. The City Council could adjust this amount (up or down) in the future by adopting another ordinance; no further Charter amendment will be necessary. In August 2026, the City Council adopted an ordinance that will take effect if this measure passes, setting the City Manager's settlement authority at $250,000, the same amount as the City Manager's current authority to approve contracts. Any settlement above the Council-set limit in the ordinance would require City Council approval, and the closed session procedures for City Council approval of settlements over the amount set by the ordinance would remain the same.

A "YES" vote amends the Charter so that the Council can adopt an ordinance setting the amount of the City Manager's settlement authority at a different limit than Government Code Section 935.4.

A "NO" vote keeps the current rule requiring the City to use the settlement authority limit established by Government Code section 935.4, currently $50,000.

This amendment will become effective if a majority of those voting on the measure vote "yes."

[redacted]

Rebecca L. Moon
City Attorney

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To obtain copy of Measure H, call the elections official at 408-730-7483 and a copy will be provided at no cost to you.

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FILED

AUG 18 2026

REGISTRAR OF VOTERS

By [redacted] Deputy